

Authority for Personal Data
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The Minister of Social Affairs and Employment
P.O. Box 90801
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Date

October 24, 2023

Our reference

z2023-02990

Your letter dated

August 15, 2023

Contact person

Your reference

2023-0000495283

Subject

Advice on amendment to the Working Conditions Regulation

Dear Ms. Van Gennip,

In your letter dated August 15, 2023, the Authority for Personal Data (AP) was consulted pursuant to the provisions of Article 36, paragraph 4, of the General Data Protection Regulation (GDPR) regarding the draft amendment to the Working Conditions Regulation (hereinafter: the draft).

The assessment of the personal data aspects of the draft gives the AP reason to make a comment.

Scope of the draft

For practitioners of certain types of (risky) professions, there is an obligation to be registered by the Minister of Social Affairs and Employment (hereinafter: the Minister of SZW) in specific registers of qualified professionals. The Minister of SZW processes in these registers the data of individuals who meet the requirements set by or under the Working Conditions Decree¹ for practitioners of certain professions. This is with a view to consultation by, among others, employers, clients, and other directly involved parties.

In the draft - the proposed amendment to the Working Conditions Regulation - the assignment set by the Working Conditions Decree is addressed to further specify by ministerial regulation which 'identifying data' and 'data on competence' an applicant for (re)registration must provide to be included in the relevant register and which data will be included in the register.² The draft elaborates on which data is concerned for several specific registers.³ These include the Register of Fireworks Handlers, the Register of Fireworks Workers, the Register of Civil Diving Work, and the Register of Crane Operators.⁴ The data that an applicant for (re)registration must provide is the same as the data that will be included in the register.

For these registers, the following (general) data⁵ is required:

- first name(s) and last name;
- date of birth and place of birth;
- a copy or scan of documents demonstrating the required knowledge and skills.

Specifically for the Register of Diving Work for Firefighters and Police, the following additional data⁶ is required for firefighters:

- the safety region in which the employee works and the diving team to which the employee belongs.

For police employees, only the following is included regarding 'identifying data' and 'data on competence' in the Register of Diving Work for Firefighters and Police⁷:

- the personal number⁸ and an anonymized copy or scan of documents demonstrating the required knowledge and skills.

Advice

For the Register of Diving Work for Firefighters and Police, as noted, the safety region in which the employee works and the diving team to which the employee belongs must be provided additionally, and this data must also be included in the register. Neither the draft nor the explanation clarifies why the processing of this additional data is necessary.

The AP advises addressing this in the explanation.

Workload AP

3 Not all registers contain the same data, p. 16 explanation (item by item).

4 Regarding the Register of Crane Operators, the initially submitted draft to the AP (Article 1.1ca, paragraph 3, of the draft) stipulated that for a proof of registration or re-registration, an identifying data could also be a suitable passport photo. This provision has since been removed from the draft, as indicated by the handling official from SZW via email.

5 Article 1.1ca, paragraph 1, of the draft.

6 Article 1.1ca, paragraph 2, of the draft.

7 Article 1.1ca, paragraph 2, of the draft.

8 Police employees only need to provide the personal number assigned to them by their employer for registration or re-registration in the Register of Diving Work for Firefighters and Police. The personal number is the unique registration number with which a police employee is recorded in the police personnel administration and is the only identifying data that is included in this register (p. 17 item-by-item explanation).

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The AP notes that the draft is not expected to require additional effort from the AP.

Publication

This advice will be published on the AP's website within two weeks.

Sincerely,

Authority for Personal Data,

Aleid Wolfsen

Chairman